

OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 95833-0001

JUL 09 2018

Honorable Rene Navarro
Judge of the Superior Court
County of Santa Clara
191 North First Street
San Jose, CA 95113



Re: Nguyen, Nguyen Le
CDC No.: V11362
Case No.: CC247793
Date of Sentence: October 3, 2003

Dear Honorable Rene Navarro:

The purpose of this letter is to provide the court with authority to resentence Nguyen Le Nguyen pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Nguyen was sentenced in 2003, and was convicted of section 245, subdivision (a)(1), Assault with A Deadly Weapon. The trial court sentenced inmate Nguyen on October 3, 2003. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Nguyen's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Nguyen's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Patricia M. Lucas, Santa Clara County Presiding Judge
Santa Clara District Attorney
Private Attorney

**ABSTRACT OF JUDGMENT – PRISON COMMITMENT – DETERMINATE
SINGLE, CONCURRENT OR FULL-TERM CONSECUTIVE COUNT FORM**

[Not to be used for multiple count convictions or for 1/3 consecutive sentences.]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA		
BRANCH OR JUDICIAL DISTRICT HOJ		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: NGUYEN LE NGUYEN	DOB: 01-01-85	CASE NUMBER CC247793
AKA: CII#: BOOKING INFORMATION: PFN DSH976 CEN: 02511375		☐ NOT PRESENT
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		
DATE OF HEARING 10-03-03	DEPT. NO. 39	JUDGE RENE NAVARRO
CLERK K. POTTER	REPORTER J. BARRON	PROBATION NUMBER OR PROBATION OFFICER K. BANUELOS
COUNSEL FOR PEOPLE M. DUFFY	☐ State Attorney General	COUNSEL FOR DEFENDANT B. BRAY ☐ APPTD.

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (Month/Date/Year)	CONVICTED BY			TERM L, M, U	TIME IMPOSED	
						Jury	Court	Plea		YRS.	MOS.
5	PC	245(a)(1)	ASSAULT WITH A DEADLY WEAPON	2002	08-12-03			X	U	(4	0)

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENTS.

COUNT	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
5	PC12022.7(a)	3	PC186.22(b)(1)	10					(13 0)

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTION OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENTS.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

Restitution Fine of: **\$10,000** per PC 1202.4(b) forthwith per PC 2085.5; **\$10,000** per PC 1202.45 suspended unless parole is revoked.
 Restitution per PC 1202.4(f): ☒ As Det by Court / ☒ Amount to be determined to: ☒ victim(s) ☐ Restitution Fund
 (*List victim name(s) if known and amount breakdown in Item 7, below.)
 Fine(s) [PA included]: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS
 Lab Fee \$_____ per HS 11372.5(a) for counts _____. ☐ Drug Program Fee of \$150+ PA per HS 11372.7(a).

6. TESTING: a. ☐ AIDS pursuant to PC 1202.1 b. ☐ DNA pursuant to PC 296 c. ☐ other (specify):

Other orders (specify): Dismissal of Ct 4 & any remaining allegations; Reg PC186.30 & PC186.32; Probation Denied; Fines/Fees Refer to DOR;

*\$12,500 Not limited to Trai Phan & Tro Pham to Phu Tran; Not own/Possess Deadly weapons; Adv of 7 yrs to life.17 years to run c/c.

See Additional Indeterminate Form (CR292)

8. TOTAL TIME IMPOSED excluding county jail term: (17 0)

9. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

- a. ☒ at initial sentencing hearing.
 b. ☐ at resentencing per decision on appeal.
 c. ☐ after revocation of probation.

- d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
 e. ☐ other (specify):

11. DATE SENTENCE PROUNOUNCED **10-03-03** CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS: **463** INCLUDING: ACTUAL/LOCAL TIME **463** LOCAL CONDUCT CREDITS ☐ 4019 ☒ 2933.1 SERVED TIME IN STATE INSTITUTION (number of days) ☐ DMH ☐ CDC ☐ CRC

12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to: ☒ reception center designated by Director, California Department of Corrections.

☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE CATALINA LIRA-NEVIUS <i>Catalina Lira Nevius</i>	DATE October 17, 2003
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1214. In determining sentence, all guidelines may be used but must be referred to in this document.

Form Adopted for Mandatory Use

Judicial Council of California

CR-290.1 [Rev. January 1, 2003]

ABSTRACT OF JUDGMENT – PRISON COMMITMENT – DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

Penal Code
§§ 1170, 1213, 1213.5

